

		(Code Civ. Proc. § 403.040(b).) Here, Defendant filed her Answer to the Complaint on August 14, 2025. (ROA 9.) Plaintiff's initial ex parte application for reclassification was filed on August 19, 2026, and the instant motion for reclassification was filed on August 21, 2026. As such, Defendant filed the instant motion for reclassification over a year after the Defendant's Answer was filed. While Defendant argues that the case is incorrectly classified, Defendant does not show good cause for not seeking reclassification earlier, and sets forth no evidence showing when Plaintiff's discovery responses upon which Defendant relies, were served. In reply, Defendant submits an additional declaration from counsel which generally provides that it was determined that the case was one of limited jurisdiction "[t]hrough written discovery and deposition," that the written discovery was needed to evaluate the damages and the deposition was needed to confirm the damages and reevaluate said damages, and that no other supporting documentation has been submitted to support any further damages. (Reply Declaration of Christopher Lyon, ¶¶ 3-4.) Nonetheless, Defendant still fails to provide any explanation for why Defendant did not seek reclassification earlier. As such, Defendant fails to show good cause for not seeking reclassification earlier as required by Code of Civil Procedure section 403.040(b)(2). The motion is therefore DENIED. <i>Plaintiff to give notice.</i>
104	HNHPC, Inc. vs. California Department of Tax and Fee Administration, 23-01369643	Petitioner HNHPC, Inc. ("Petitioner") moves for reconsideration and denial of the Court's October 31, 2025 order granting respondents California Office of Administrative Law and California Department of Tax and Fee Administration's ("Respondents") Motions to Quash. Alternatively, Petitioner seeks clarification as to what the parties can and cannot do or submit under the October 2025 order. Code of Civil Procedure section 1008(a) provides, in relevant part: When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any

party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. Under section 1008(a), Petitioner's Motion for Reconsideration of the October 2025 order is untimely.

In the moving papers, Petitioner argues the Court should exercise its inherent power to reconsider the order because that order is based on the false premise that there was an official, certifiable administrative record that is sufficiently comprehensive to allow a determination of the issues raised in this action without resorting to extra-record evidence. Petitioner contends that Respondents knew the Court's presumption was inaccurate but did not correct it and, based on Respondents' counsel's recent representations that Respondents intend to proceed through declarations and requests for judicial notice, Respondents have now effectively admitted that an adequate record does not exist and they will be required to submit extra-record evidence to defend the case at trial.

However, in its reply, Petitioner asserts that it has since learned that a certified administrative record does exist and Respondents were concealing that record because it is woefully deficient. The representations in the reply that a certified administrative record exists thwarts the entire premise of the moving papers that reconsideration is warranted because the October 2025 order was based on a false presumption that an official administrative record exists.

Petitioner pivots in its reply to argue Respondents intend to rely on a selective collection of incomplete materials rather than the actual administrative record and to prevent this, the Court should either limit its review to only the certified record or reconsider and reverse its prior order and open up full discovery to allow the parties to submit any documents and testimony they believe will assist the Court in making its determination. The Court's October 2025 order granted Respondents' Motions to Quash the notices of deposition served by Petitioner on the ground that the challenged actions are quasi-legislative and extra-record evidence is neither admissible nor discoverable.

		The Court declines to consider any argument in favor of reconsideration of its finding that the challenged actions are quasi-legislative and extra-record evidence is not admissible. Any issues regarding the certified administrative record and what should be included therein may be addressed by way of Petitioner's Motion to Establish the Proper Scope and Content of the Administrative Record or, In the Alternative, to Augment the Record. In light of the above, the Motion for Reconsideration is DENIED. <i>Opposing party to give notice.</i>
105	Rutner vs. OneSmile Intermediate, LLC, 26-01555258	Respondent OneSmile Intermediate, LLC ("Respondent") demurs to the Petition for Writ of Mandate filed by petitioner Robert D. Rutner ("Petitioner"). First, Respondent argues the Petition is time-barred because it seeks to challenge a decision made by Respondent on October 5, 2018. This is a mischaracterization of the Petition. Petitioner seeks to compel Respondent to permit the inspection and copying of its books and records. The Petition alleges that Petitioner, as a member of Respondent, made multiple demands beginning in the spring of 2025, all of which were denied. While the Petition alleges that Respondent made an October 5, 2018 repurchase attempt, the Petition itself arises out of Respondent's refusal to provide access to records rather than any decision made on October 5, 2018. Thus, Respondent's statute of limitations argument fails. Next, Respondent argues Petitioner has no standing to seek access to the books and records because he is not a member of the limited liability company, as demonstrated by the exhibits to the Petition. Under the Contribution and Exchange Agreement attached to the Petition as Exhibit A, Respondent had the right to purchase units held by Petitioner under certain circumstances, including cause. Exhibit B to the Petition is an October 5, 2018 letter to Petitioner which states that Respondent is exercising its option to purchase for cause. Enclosed with the letter was a check for an aggregate purchase price of \$318,148.00. While these exhibits show